

Special Notice

SUBJECT* INTENT TO SOLE SOURCE | New Philips Dynacad Uronav Service | WASHINGTON DC VA MEDICAL CENTER | BASE PLUS FOUR OPTION YEARS | 05/15/2025 to 05/14/2026 UCD 05/14/2030

GENERAL INFORMATION

CONTRACTING OFFICE'S ZIP CODE*	21201
SOLICITATION NUMBER*	36C24525Q0431
RESPONSE DATE/TIME/ZONE	04-30-2025 1:00 PM EASTERN TIME, NEW YORK, USA
ARCHIVE	30 DAYS AFTER THE RESPONSE DATE
RECOVERY ACT FUNDS	N
PRODUCT SERVICE CODE*	J065
NAICS CODE*	811210
CONTRACTING OFFICE ADDRESS	Department of Veterans Affairs VISN 5 NCO 5 SUITE 275 849 INTERNATIONAL DRIVE Baltimore MD 21201
POINT OF CONTACT*	CONTRACTING OFFICER AMY WALTER AMY.WALTER1@VA.GOV

ADDITIONAL INFORMATION

AGENCY'S URL	https://department.va.gov/integrated-service-networks/visn-0
URL DESCRIPTION	VISN 5 VA Capitol Health Care Network (VISN 5)
AGENCY CONTACT'S EMAIL ADDRESS	AMY.WALTER1@VA.GOV
EMAIL DESCRIPTION	CONTRACTING OFFICER

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DESCRIPTION

Statement of Work

Uronav Philips InVivo Support Contract

A. GENERAL

Scope of Services:

The purpose of this requirement is to provide support for the Uronav Fusion Biopsy & : DynaCAD 5 Systems at Washington DC VAMC. The Contractor shall provide all labor, personnel, equipment, tools, materials, supervision and other items and services necessary to perform service and maintenance.

Location: Washington DC VA Medical Center, 50 Irving Street NW, Washington, DC 20422

B. WORK HOURS

- a. Hours of Operation: Normal business hours are Monday through Friday, 8:00 a.m. to 4:00 p.m., excluding holidays. Should the Contractor require work afterhours, the Contractor shall arrange in advance with the Contracting Officer's Representative (COR).
- b. Delivery Hours: The Warehouse is open to receive deliveries Monday through Friday, 8:00 a.m. to 4:00 p.m., excluding holidays.
- c. National Holidays: The holidays observed by the Federal Government are: New Year's Day, Martin Luther King Day, President's Day, Memorial Day, Juneteenth, Independence Day, Labor Day, Columbus Day, Veteran's Day, Thanksgiving Day, and Christmas Day and any other day specifically declared by the President of the United States to be a national holiday. Contractor may work on holidays with prior communication and coordination.

C. PERIOD OF PERFORMANCE

Base Year	05/15/2025 - 05/14/2026
1st Option Period	05/15/2026 - 05/14/2027
2nd Option Period	05/15/2027 - 05/14/2028
3rd Option Period	05/15/2028 - 05/14/2029
4th Option Period	05/15/2029 - 05/14/2030

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D. EQUIPMENT

<u>EE#/SN/ SID</u>	<u>Manufacturer</u>	<u>Model #/Name</u>
1330851 / SN: 20057	Philips	UroNav R3 System
1330851 / SN: 93346104	Philips	UroNav R3 System -Transperineal Biopsy
/424/: 104296299	Philips	DynaCAD 5 Breast & Prostate

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E. SPECIFICATIONS

a. Preventative Maintenance

- i. This contract shall include all preventative maintenance of the equipment according to manufacturer's recommendations/procedures in the equipment manual.
- ii. All tasks in the manufacturer's procedures shall be completed at the manufacturer's listed frequencies.
- iii. PMs will be accomplished in accordance with the Original Equipment Manufacturer (OEM) recommendations.

b. Corrective Maintenance

- i. The contract shall include all on-site corrective (unplanned) maintenance/repair of the equipment in accordance with the manufacturer's manual.
- ii. Recalls & Alerts-- Contractor shall perform all remediation actions needed for product alerts and recalls issued for the equipment.
- iii. The contractor will perform unlimited corrective services on equipment/systems under full coverage agreement from OEM.

c. Parts/Materials/Tools/Labor

- i. The Contractor shall maintain an uptime of 98%.
- ii. All parts and materials to complete the maintenance shall be included as a part of this contract.
- iii. Contractor shall provide their own tools to complete the maintenance.
- iv. All labor (including travel) to complete the maintenance is included in the contract.
- v. Contractor must use OEM certified parts and service. Use of refurbished parts must be approved in writing by Biomedical Engineering prior to use.
- vi. Engineer/technicians must be OEM trained on all equipment included in agreement. Proof of competency to be provided upon request.

d. Updates/Patching

- i. Contractor shall complete available updates to the software at the discretion of Biomedical Engineering.
- ii. Contractor shall complete all patching according to manufacturer's specifications.

e. Response Time

- i. Contractor shall respond to trouble phone calls within one hour.
- ii. The minimum standard response time for dispatch will be no later than the following workday after notification of equipment malfunction.
- iii. Service agreement service call priority with OEM under active coverage.

f. Check in/Out

- i. Contractor personnel arriving on-site to perform work shall report to the Biomedical Engineering Department.
- ii. Contractor personnel shall sign in using the department's vendor sign in sheet, filling out all required information.
- iii. Contractor personnel's tool bags are subject to inspection by the Biomedical Engineering department upon arrival and upon departure.
- iv. Contractor personnel shall sign out upon completion of visit.

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- v. Prior to departure, Contractor personnel are required to, at a minimum, verbally report any issues with the equipment to the Biomedical Engineering department, especially noting if the system is still down or not fully repaired.
- vi. The VA campus is non-smoking. Contractor personnel are required to comply with this policy.
- vii. Parking. It is the responsibility of the Contractor to park in the appropriate designated parking areas.

g. Reporting

- i. Within 5 business days of award, must provide validation of equipment active coverage with OEM to certify service agreement in place.
- ii. Contractor shall provide a copy of the service report, complete with test data, to VHAWASHTM@VA.GOV within three business days after completion of any services.
- iii. Service reports shall include identifying information about the equipment, all services provided during the service visit, any issues found during the visit, the technician/engineer names of the personnel performing work, and the date service was provided.

h. Remote Support

- i. The Contractor shall provide a telephone line available 24/7/365 for technical support. Contractor shall also provide a phone number for VA staff to call to dispatch Contractor field service engineers/technicians.
- ii. If remote support via site-to-site virtual private network (VPN) is required, Contractor shall work with the COR and the facility Information Security Officer (ISO) to meet the requirements prior to connection. A National Site to Site MOU/ISA is the preferred way to complete this connection.

i. Patient Health Information

- i. The Contractor shall safeguard patient health information.
- ii. The Contractor shall report to the Biomedical Engineering Department any issues with disclosed or unsecure patient health information.
- iii. It has been determined that protected health information (PHI) may be used, disclosed, accessed, transmitted, created, stored/maintained, and/or destroyed (providing appropriate proof of destruction in compliance with VA Directive 6371) by the Contractor, and a signed Business Associate Agreement (BAA) shall be required. The Contractor shall adhere to the requirements set forth within the BAA, referenced in the solicitation, and shall comply with all applicable VA/VHA Directives. Once awarded, Contractor and Contracting Officer will collaborate with the appropriate Facility Privacy Officer or the VHA Privacy Office BAA team (VHABAAIssues@va.gov) to implement the appropriate BAA.
- iv. Contractor shall note remove any hard drives, storage devices, or anything containing patient health information from the site.

j. Contractor Requirements

- i. All Contractor personnel performing services on the equipment shall have factory training and experience in the maintenance and repair of the equipment.

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- ii. Contractor shall provide copies of training certificates for the Contractor personnel performing work on-site upon the request of the Government.
- iii. Waste Removal: The contractor is responsible to remove and properly dispose of all waste related to the services provide on-site.

k. Safety and Security

- i. Contractor shall follow all Occupational Safety and Health Administration (OSHA) laws and regulations. The Contractor is responsible for reporting any hazards they come across to their point of contact.
- ii. Contractor shall follow all local procedures concerning infection control. Should the Contractor be unsure of the requirements, the COR can provide the specific information and procedures.
- iii. Contractor personnel shall wear visible identification at all times while on VA property. Contract personnel are required to identify themselves as such to avoid creating an impression in the minds of members of the public that they are Government officials.
- iv. Property Damage
 - 1. The contractor shall take all necessary precautions to prevent damage to any Government property.
 - 2. The contractor shall report any damages immediately and shall be assessed current replacement costs for property damaged by the contractor, unless corrective action is taken.
 - 3. Any damaged material (i.e., trees, shrubs, lawn/turf, curbs, gutters, sidewalks, etc.) will be replaced in a timely manner or corrected by the contractor with like materials, at no extra cost to the Government, upon approval of the Contracting Officer.

F. QUALITY ASSURANCE

- a. End-users, Biomedical Engineering, and/or the contract COR shall perform system verification tests to ensure the system is fully functional following service/repairs.
- b. Issues with the quality of the Contractor's work will be communicated through the Contracting Officer to the Contractor point of contact for resolution.
- c. Documentation with be completed in the Government systems.

G. Invoicing/Payment

- a. Noncontract Charges: The contractor shall not perform any service that will result in additional charges without prior approval from the Contracting Officer.
- b. Payment: Payment will be made in arrears, and upon receipt of a properly prepared invoice. Any invoice that is not properly prepared may get refused and sent back for correction. An invoice must include the following criteria to be considered "properly prepared":
 - i. Contract period of performance and monthly period of performance when the service was completed.
 - ii. Equipment SN and model name serviced.
 - iii. Contract number
 - iv. Purchase order number
 - v. Correct payment address

- H. GUARANTEE:** The contractor will guarantee workmanship and all parts furnished by the contractor for a period of not less than 90 days.

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- I. PRIOR INSPECTION OF EQUIPMENT: Potential contractors may, at their own expense, inspect equipment covered by this solicitation (ref 52.237-1 SITE VISIT). Arrangements must be made in advance with Biomedical Engineering.
- J. Failure to carry out the above procedures will be considered as a failure to document the service visit and will constitute a failure to perform.
- K. Over and Above Repairs - For the emergency services, repairs and maintenance that are over and above the service coverage level, only the Contracting Officer (CO) is authorized to approve contract modifications. Additional services shall be approved by the Contracting Officer prior to the contractor initiating any work. The contractor shall provide an on schedule- quote to both the CO and COR for review and consideration. Additional funding will be provided by the facility as-needed for payment.

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ORIGINAL EQUIPMENT MANUFACTURER (OEM) LETTER FOR SOLE SOURCE



inspired by a better way

DUNS#009237140

US Department of Veterans Health
Ms. Kathleen Grunder
Chief Biomedical Engineer
Washington, DC VA Medical Center

Re: Sole Source Justification for Philips Invivo products

Dear Ms. Grunder,

Philips Healthcare is the Original Equipment Manufacturer (OEM) of the Philips equipment outlined in Action #36C245-21-AP-2527. As your sole source service provider, you are assured that Philips' Field Service Engineers (FSEs), as well as our authorized representatives, will provide you with quality service, parts that are OEM certified (new or like new), and are compatible with your equipment. We provide them with access to the highest level of proprietary diagnostic software and other tools to maintain the equipment they cover. Due to this, Philips will only allow these individuals to install proprietary software and hardware updates/upgrades on our equipment. Philips will only guarantee work done by these individuals. Philips Healthcare uses no small or veteran owned business subcontractors to support Philips manufactured equipment.

Diagnostic imaging devices are subject to American College of Radiology (ACR) accreditation, if providing services under Medicare or Medicaid reimbursement. Meeting OEM operating specifications is a minimum requirement in order to be certified by ACR and other regulating agencies.

Ms. Grunder, there are other vendors out there that can provide you with adequate service, however, you are not guaranteed that the service being provided meets OEM certification or that the replacement parts they are using are compatible with your unit.

Please accept this letter of justification for sole source contracting with Philips Healthcare for the Philips imaging technology in use at this or other VA facilities. Should you have any further questions, please contact me at (301) 525-9683.

Sincerely,

John F. Robertson
Precision Diagnosis Solutions
Federal Government

John.Robertson@Philips.com

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INTENT TO SOLE SOURCE

THIS IS AN INTENT TO SOLE SOURCE ANNOUNCEMENT AND IT IS FOR INFORMATION & PLANNING PURPOSES ONLY; IT IS NEITHER A SOLICITATION ANNOUNCEMENT, NOR A REQUEST FOR INFORMATION, PROPOSALS OR QUOTES AND DOES NOT OBLIGATE THE GOVERNMENT TO AWARD A CONTRACT. IF A VENDOR RESPONDS TO THIS INTENT TO SOLE SOURCE, THE VENDOR WILL NOT RECEIVE A RESPONSE. THE PURPOSE OF THIS INTENT TO SOLE SOURCE ANNOUNCEMENT IS FOR MARKET RESEARCH, IN ORDER TO MAKE APPROPRIATE ACQUISITION DECISIONS, AND TO GAIN KNOWLEDGE OF POTENTIALLY QUALIFIED SERVICE-DISABLED VETERAN OWNED SMALL BUSINESSES, VETERAN OWNED SMALL BUSINESSES, 8(A), HUBZONE AND OTHER SMALL BUSINESSES WHO STATE THEY ARE CAPABLE OF PERFORMING THE WORK. ****A sole source contract award will result from this Notice.****

IN THE EVENT THAT A VENDOR DISAGREES WITH THIS SOLE SOURCE, THEN DOCUMENTATION OF TECHNICAL EXPERTISE MUST BE PRESENTED IN SUFFICIENT DETAIL FOR THE GOVERNMENT TO DETERMINE THAT YOUR COMPANY POSSESSES THE NECESSARY FUNCTIONAL AREA EXPERTISE AND EXPERIENCE TO COMPETE FOR THIS ACQUISITION.

****VENDOR RESPONSE SHALL INCLUDE THE BELOW****

Responses to this INTENT TO SOLE SOURCE shall include company name, address, point of contact, phone number, point of contact e-mail, DUNS Number, Cage Code, size of business pursuant to North American Industrial Classification System ([NAICS 811210](#)), (size standard of \$34M, per SBA Table of Small Business Size Standards January 1, 2022) AND whether your company has special socio-economic status (i.e., SDVOSB, VOSB, Small Business, HUBZone, etc.).

(A) COMPANY NAME

(B) ADDRESS

(C) POINT OF CONTACT

(D) PHONE, FAX, AND EMAIL

(E) DUNS NUMBER

(F) CAGE CODE

(G) TAX ID NUMBER

(H) TYPE OF SMALL BUSINESS, E.G. SERVICES DISABLED VETERAN OWNED SMALL BUSINESS, VETERAN-OWNED SMALL BUSINESS, 8(A), HUBZONE, WOMEN OWNED

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SMALL BUSINESS, SMALL DISADVANTAGED BUSINESS, OR SMALL BUSINESS HUBZONE BUSINESS, (I) WILL YOUR COMPANY BE PERFORMING THE WORK? OR DO YOU PLAN ON SUB-CONTRACTING OUT THE WORK?

(I) Is your company considered small under the NAICS code identified under this RFI? (Size standard of = or < \$30M, per SBA Table of Small Business Size Standards August 19, 2019)

(J) Does your company have an FSS contract with GSA or the VA NAC or a GWAC contract holder with any other federal agency? If so, please provide the contract number.

(K) If your company holds a FSS GSA/VA NAC contract other federal GWAC contract holder, are the services requested available on your schedule/contract?

(L) General pricing of your products is encouraged. Pricing will be used for the purpose of market research only. It will not be used to evaluate for any type of award.

AND

(J) ***WILL YOUR COMPANY BE DOING ALL OF THE WORK? IF NOT, WILL YOUR COMPANY BE SUB-CONTRACTING OUT THE WORK?***MUST ANSWER*** MUST PROVIDE A CAPABILITY STATEMENT THAT ADDRESSES THE ORGANIZATIONS QUALIFICATIONS AND ABILITY TO PERFORM AS A CONTRACTOR FOR THE WORK DESCRIBED BELOW. IF THE VENDOR IS AN SDVOSB/VOSB, BE PREPARED TO DEMONSTRATE HOW IT WILL NOT SUB-CONTRACT THE WORK BY MORE THAN 51%, PER VAAR 852.219-75, VAAR 819.7011(b) Contract clauses. (DEVIATION)

*****IF THERE ARE ANY OBJECTIONS TO THIS SOLE SOURCE, CONTACT THE CONTRACTING OFFICER AT AMY.WALTER1@VA.GOV.*****